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Case Name: *Amit Rattu et al. v. Melissa Baxter*

Case No.: 24CV441725

This case has a procedural history that can only be described as desultory.

On May 22, 2025, the court dismissed the case without prejudice, based on multiple failures to appear at hearings by the plaintiffs, Amit Rattu, Melanie Campbell, and Munir Omar Ali (collectively, “Plaintiffs”). (The May 22 hearing was on an order to show cause why the case should not be dismissed for a prior failure to appear.) On June 2, 2025, Plaintiffs filed an ex parte application to set aside the dismissal. The following day, the court signed an order setting the application for a noticed law-and-motion hearing on July 29, 2025. The court sent notice to all the parties. The court then received a belated opposition to the ex parte application from defendant Melissa Baxter on June 6, 2025. Finally, on July 10, 2025, Plaintiffs filed, without leave of court, a revised “notice of motion” and memorandum of points and authorities in support of the request to set aside the dismissal.

Because Plaintiffs filed their July 10, 2025 “notice of motion” only 13 court days before the hearing, it is untimely, and the court will disregard it. Plaintiffs’ original ex parte application describes counsel’s various difficulties in appearing remotely for the hearings in this case. The court finds that these papers sufficiently establish “mistake, inadvertence, surprise, or excusable neglect” on the part of Plaintiffs’ counsel under Code of Civil Procedure section 473, subdivision (b). Although the court certainly understands Baxter’s frustration with the way this case has been handled by opposing counsel—as recounted in her handwritten ex parte opposition—the court finds that the standard for mandatory relief under section 473(b) has been met.

The motion to set aside is granted, and the court sets a further case management conference on **October 14, 2025 at 10:00 a.m.** in Department 10. In its earlier order setting the July 29, 2025 hearing, the court noted: “Given plaintiff’s counsel’s failure to use remote appearance technology to appear on both April 1, 2025 and May 22, 2025, counsel should plan to appear in person for future hearings.” (See June 3, 2025 Order, p. 5:22-24.) The court now amends this to state that plaintiffs’ counsel may appear remotely, but it is his responsibility to ensure that he is able to use Microsoft Teams properly, with both a working camera and microphone. If he is unable to do so, he should plan to appear in person, which is always the optimal way to appear in court in any event. As a reminder, the reason the court allows remote appearances at hearings is to increase *access* to the court, not to increase the number of weak excuses for failures to appear.

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Calendar Line 10**Case Name:** *Olga Sanchez Mojarro v. Oscar Ernesto Reyes Varela et al.***Case No.:** 24CV453124

Plaintiff Olga Sanchez Mojarro brings this motion for leave to file a first amended complaint (“FAC”), just two months after having filed the original complaint on December 3, 2024. Defendants Reyes Transportation, Inc. and Oscar Ernesto Reyes Varela (together, the “Reyes Defendants”) do not—and really cannot—challenge the amendment on the ground that it was unduly delayed or that it will result in prejudice to them. Nevertheless, they do oppose the motion on the ground that the proposed amendment would be futile, because it adds a prayer for punitive damages, which the Reyes Defendants argue cannot be supported by the negligence causes of action in the case.

While the court shares the Reyes Defendants’ doubts as to whether the prayer for punitive damages is adequately supported by the allegations of the proposed FAC, the court concludes that this is not the proper time and place to consider these motion-to-strike-type arguments. The proposed FAC includes other non-controversial amendments, including dismissal of two previously named defendants, that may serve to help focus the issues in the case. In addition, although the court does have strong doubts about the viability of any punitive damages claim based on the present allegations, the current amendment is not so obviously futile that the court can strike it without consideration of more complete briefing on the issue. Finally, it is so early in the life of the case that there is plenty of time to consider a properly noticed pleading challenge.

Defendants can certainly bring a motion to strike, but in the meantime, the court GRANTS the motion for leave. Plaintiff must file her FAC within 10 days of this order.

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